

Website Development Agreement

Professional Services Agreement between Williams Digital and Steve R. Skipper / Anointed Homes Art

Effective Date: Upon Acceptance · **Version:** 1.0 · **Jurisdiction:** State of Alabama

Scope of Services

The Service Provider agrees to design, develop, and deploy a custom fine-art gallery website for the Artist.

The project includes the following deliverables:

- ♦ **Home Page** — A gallery-style landing page featuring the Artist's work, credentials, featured collections, and links to the online print shop.
- ♦ **The Artist Page** — A consolidated page presenting the Artist's biography, artist statement, craft, and honors and recognition.
- ♦ **Collections Page** — A presentation of the Artist's collections, each linking through to the corresponding category in the Artist's existing online store.
- ♦ **Foundation Page** — A page presenting the Anointed Homes Art Foundation, its scholarship initiative, and its prison art ministry.
- ♦ **Film Page** — A landing page for *Colors of Character*, including links to external listings.
- ♦ **Responsive Design** — All pages built to display properly on desktop, tablet, and mobile devices.
- ♦ **Content Migration** — Transfer of existing written content, artwork images, and photographs from the Artist's current website into the new site.
- ♦ **Store Linking** — Configuration of links from the website into the Artist's existing e-commerce store so that all purchasing continues to take place within that store.
- ♦ **Domain & Hosting Setup** — Configuration of the Artist's domain and deployment of the website to hosting managed by the Service Provider, including SSL/HTTPS.
- ♦ **SEO Foundations** — Page titles, meta descriptions, and basic on-page search-engine optimization.
- ♦ **URL Redirects** — Reasonable redirects from existing website addresses to their new locations to preserve existing search visibility.

E-Commerce — Out of Scope

The Artist's existing online store remains the system of record for all products, prices, sizes, editions, inventory, shipping, taxes, payment processing, and order management. This Agreement does **not** include rebuilding, replacing, or migrating the store, and does not include restyling the store's own theme. The website will link to the store; it will not duplicate product or pricing information.

Should the Artist later wish to have the store's appearance restyled to match the new website, that work may be quoted separately as described in Section 3.

Content Accuracy & Approval

All written content, artwork titles, descriptions, awards, honors, and biographical material used on the website will be drawn from material supplied or already published by the Artist. The Service Provider will not originate new claims, awards, artwork descriptions, or biographical details.

The Artist is responsible for reviewing and confirming the accuracy of all content prior to launch, including the pairing of artwork titles with their corresponding images.

Revision Policy

The project includes up to **three (3) rounds of revisions** during the design and development phase. A revision round consists of a consolidated set of feedback submitted at one time. Additional revision rounds beyond the included three will be billed at the Service Provider's hourly rate of **\$50/hour**. Revisions must be requested within seven (7) days of receiving a design proof or deliverable; otherwise, the deliverable will be considered approved.

Change Orders & Scope Changes

Any work requested by the Artist that falls outside the scope described above — including additional pages, custom integrations, or new features — will require a written **Change Order**. The Service Provider will provide a quote for the additional work, and no work will commence until the Artist approves the Change Order in writing. Change Orders may affect the project timeline and will be billed separately from the build fee.

Fees and Payment

In consideration of the services provided, the Artist agrees to compensate the Service Provider as follows:

ITEM	AMOUNT
Deposit — 50%, due upon acceptance of this Agreement. Work begins after the deposit is received.	\$500.00
Final Payment — 50%, due upon launch of the live website.	\$500.00
Total Build Fee	\$1,000.00 USD

Build Fee — \$1,000.00 USD

A one-time build fee of **\$1,000.00 USD** covers the complete website design, development, content migration, domain and hosting setup, SEO foundations, redirects, and launch, as described in Section 2. This fee is split into two equal installments of **\$500.00**: a **50% deposit due upon acceptance** of this Agreement, and the remaining **50% due upon launch** of the live website.

Monthly Hosting & Maintenance — \$30.00 USD / month

A recurring monthly fee of **\$30.00 USD** covers website hosting, SSL certification, security and software updates, uptime monitoring, backups, and **minor content updates** — such as correcting text, swapping an existing image, updating a link, or adjusting contact details.

The monthly fee begins on the date the website is launched live and continues until cancelled by either party with **thirty (30) days written notice**.

The monthly fee does **not** include the seasonal and exhibition updates described below, or any work constituting a new page, new feature, or redesign.

Artwork, Exhibition & Story Updates — Quoted Per Occurrence

The parties acknowledge that the Artist will require **multiple updates throughout each year** to showcase new artwork, shows and exhibitions, unveilings, commissions, honors, and the stories behind them.

Each such update will be **quoted and contracted individually at the time of the request**, priced according to the amount of work required. The Service Provider will provide a written quote before any work begins, and no work will commence until the Artist approves that quote in writing.

Examples of work quoted separately under this provision include: adding a new artwork or collection with accompanying imagery and written story; building an exhibition or show announcement; adding a new gallery, feature section, or artwork detail page; image preparation, cropping, or retouching of artwork photography; and expansions to the Honors and Awards presentation.

There is no minimum number of updates required, and no obligation on the Artist to purchase any update.

Third-Party Costs

The Artist is responsible for costs paid directly to third parties, including the **annual domain registration fee** (typically \$15–\$25 per year) and the Artist's **existing e-commerce store subscription**, which is unaffected by this Agreement and continues to be billed by that provider directly.

Payment Methods & Terms

Payment shall be submitted via the secure payment link(s) provided by the Service Provider, or by another method mutually agreed upon by the parties. Payment details and instructions will be included on the invoice.

The deposit is due in full upon acceptance of this Agreement. The final build payment is due upon launch of the live website. The monthly fee begins upon launch and continues until cancelled. A late fee of **1.5% per month** may be assessed on any balance remaining unpaid beyond thirty (30) days from the invoice date. The Service Provider reserves the right to delay or suspend services for any account with an outstanding balance exceeding thirty (30) days.

Cancellation & Refund Policy

Should the project be cancelled by the Artist after work has commenced, the **\$500.00 deposit is non-refundable**, as it covers discovery, planning, and development work already performed. If the project is cancelled prior to launch, no final build payment shall be owed. The monthly hosting and maintenance fee may be cancelled at any time with thirty (30) days written notice. If the Service Provider cancels before any work has been performed, the full deposit will be refunded.

Artwork Rights & Intellectual Property

The Artist Retains All Rights in His Artwork

All paintings, drawings, artwork, reproductions, photographs of artwork, and images of the Artist supplied for or used on the website remain the **exclusive property of the Artist**. Nothing in this Agreement transfers, assigns, or licenses any ownership interest in the Artist's artwork to the Service Provider.

The Service Provider is granted a **limited, non-exclusive license** to use, reproduce, crop, and display the Artist's artwork **solely** for the purpose of designing, building, testing, and maintaining the website described in this Agreement. This license terminates upon termination of this Agreement, except as provided under Portfolio & Credit Rights below.

The Service Provider shall **not** sell, sublicense, distribute, or produce prints or merchandise of the Artist's artwork, and shall not use the artwork to train, fine-tune, or develop any artificial-intelligence model.

No AI-Generated Artwork

The Service Provider shall not create, generate, or publish artificial-intelligence-generated imagery that depicts, imitates, or purports to represent the Artist's paintings or artistic style anywhere on the website.

Ownership of Website Deliverables

Upon receipt of full payment of the build fee, the Artist shall own all **custom-designed website deliverables**, including the website design, page layouts, templates, and source code created specifically for the Artist under this Agreement. The Service Provider retains the right to use general techniques, tools, frameworks, and methodologies developed or utilized during the engagement. Third-party assets (fonts, open-source software, stock imagery) remain subject to their respective license agreements.

Portfolio & Credit Rights

The Service Provider retains the right to display and reference **the completed website design** in its professional portfolio, marketing materials, case studies, and social media. Because the website is a gallery site, the parties acknowledge that such display will necessarily include screenshots and images showing the Artist's artwork **as presented within the website design**, and the Artist consents to this use for that purpose.

This right does not extend to reproducing the Artist's artwork as standalone imagery divorced from the website design, nor to any commercial use of the artwork itself. The Artist may withdraw this portfolio consent at any time upon written notice, after which the Service Provider will remove the material from its own channels within a reasonable period.

A small, unobtrusive credit line (e.g., "Site by Williams Digital") may be placed in the website footer. If the Artist wishes to opt out of the credit line, this must be agreed upon in writing prior to launch.

Domain & Hosting

Any domain names registered on behalf of the Artist shall be **owned by the Artist** and registered in the Artist's name and contact information. Hosting managed by the Service Provider remains under the Service Provider's administrative control for the duration of the monthly service engagement. Upon termination and settlement of all outstanding balances, the Service Provider will provide the Artist with a complete copy of the website files and source code and will assist with transferring hosting to the Artist or a provider of the Artist's choosing within a reasonable period.

Project Timeline

The Service Provider will aim to complete the project within approximately **three to four (3–4) weeks** from receipt of the signed Agreement and deposit, subject to timely delivery of content and feedback from the Artist:

- ♦ **Week 1** — Design review, content gathering, and collection of artwork images.
- ♦ **Week 2** — Build-out of all pages and content loading.
- ♦ **Week 3** — Store linking, redirects, SEO configuration, and Artist review.
- ♦ **Week 4** — Launch, walkthrough, and the start of the post-launch support window.

This timeline is a good-faith estimate. Delays in providing artwork images, content, feedback, or approvals may extend the schedule accordingly, and the Service Provider shall not be held liable for such delays.

Artist Responsibilities & Support

To facilitate the effective delivery of services, the Artist agrees to:

- ◆ Provide timely, accurate, and complete content, including **high-resolution artwork images**, photographs, biographical material, and award information as reasonably requested.
- ◆ Confirm the correct pairing of artwork titles with their corresponding images, and the accuracy of all titles, awards, names, and honors prior to launch.
- ◆ Designate a primary point of contact for all matters relating to this engagement.
- ◆ Respond to communications, design proofs, and requests for approval within a reasonable timeframe.
- ◆ Warrant that all artwork, images, and materials provided are owned by the Artist or properly licensed, and that the Artist holds the necessary rights and releases for any likenesses, logos, or trademarks depicted.
- ◆ Maintain the Artist's own accounts with the domain registrar and the e-commerce store provider.

Delays or failure to meet these responsibilities may impact the timeline and effectiveness of the services provided.

Post-Launch Support

The Service Provider will provide **thirty (30) days of complimentary post-launch support** beginning on the date the website goes live. This support covers bug fixes and configuration questions. Ongoing hosting, maintenance, and minor content updates thereafter are covered by the monthly fee described in Section 3.

Project Pause & Inactivity

If the Artist becomes unresponsive or fails to provide requested materials, feedback, or approvals for a period of **fourteen (14) consecutive days**, the project may be placed on hold. Projects paused for more than **sixty (60) days** may be treated as cancelled under the Cancellation & Refund Policy outlined in Section 3.

Launch Sign-Off

Prior to the public launch of the website, the Service Provider will present the completed site to the Artist for **final review and approval**. The Artist shall have five (5) business days to review and provide written approval or submit final revision requests. Upon approval, the Service Provider will proceed with launch and the final build payment of **\$500.00** will become due. If the Artist does not respond within this period, the website will be deemed approved.

Term and Termination

This Agreement shall become effective upon acceptance by the Artist and shall remain in effect until cancelled as provided below.

Termination by Either Party

Either party may terminate this Agreement at any time by providing **thirty (30) days written notice** to the other party. Upon termination, the Service Provider will provide the Artist with all completed deliverables and the source code created to date, and assist with a reasonable transition of hosting.

Termination for Cause

Either party may terminate this Agreement immediately upon written notice if the other party materially breaches any provision and fails to cure such breach within five (5) days of receiving written notice.

Effect of Termination

Upon termination, the Artist shall pay the Service Provider for all services rendered up to the effective date of termination. The Service Provider will deliver all completed work product and provide reasonable assistance for transition. The Artist's rights in his artwork survive termination in full.

Limitation of Liability

The Service Provider provides professional digital services with reasonable care and industry-standard practices. To the maximum extent permitted by applicable law:

- The Service Provider shall not be liable for any indirect, incidental, special, consequential, or punitive damages arising out of or related to this Agreement.
- The Service Provider's total aggregate liability under this Agreement shall not exceed the total fees paid by the Artist under this Agreement.
- The Service Provider is not responsible for third-party service disruptions, including hosting outages, domain registrar issues, or changes to or outages of the Artist's e-commerce store platform.
- The Service Provider is not responsible for the processing, fulfillment, or accuracy of any order, price, or inventory record within the Artist's e-commerce store.
- The Service Provider makes no guarantees regarding specific business outcomes, sales, search engine rankings, or website traffic resulting from the services provided.

Warranty Disclaimer

All services and deliverables are provided "as-is" and "as-available." The Service Provider makes no warranties, express or implied, including but not limited to warranties of merchantability, fitness for a particular purpose, or uninterrupted, error-free operation of any website or digital product.

Client Content Indemnification

The Artist agrees to indemnify, defend, and hold harmless the Service Provider from any claims, damages, losses, liabilities, or expenses arising from artwork, content, images, likenesses, logos, or materials provided by the Artist, including any claim that such materials infringe the rights of a third party.

Accessibility Disclaimer

The Service Provider builds websites using modern web standards and best practices to support accessibility. However, full compliance with WCAG 2.1 AA or the ADA is not guaranteed unless a dedicated accessibility audit has been explicitly contracted in a separate Statement of Work.

Confidentiality

Both parties acknowledge that in the course of this engagement, confidential information may be disclosed, including unreleased artwork, upcoming commissions or exhibitions, collector information, and business records. Each party agrees to:

- ♦ Maintain the confidentiality of all such information.
- ♦ Not disclose confidential information to third parties without prior written consent.
- ♦ Use confidential information solely for the purposes of fulfilling obligations under this Agreement.

The parties specifically acknowledge that **unreleased or unannounced artwork** shall not be published, displayed, or referenced by the Service Provider prior to the Artist's written approval.

This confidentiality obligation shall survive the termination of this Agreement and continue for a period of **three (3) years** following termination or expiration.

Dispute Resolution & Governing Law

In the event of any dispute, the parties agree to first attempt to resolve the matter through **good faith negotiation**. If the dispute cannot be resolved within thirty (30) days, the parties agree to submit the dispute to **binding arbitration** in accordance with the rules of the American Arbitration Association, conducted in the State of Alabama.

This Agreement shall be governed by and construed in accordance with the **laws of the State of Alabama**, without regard to its conflict of laws principles. Any legal proceedings related to this Agreement shall be conducted within the appropriate jurisdictions of the State of Alabama.

General Provisions

- ♦ **Entire Agreement** — This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements, understandings, and representations.
- ♦ **Amendments** — This Agreement may only be amended or modified in writing, signed by both parties.
- ♦ **Independent Contractor** — The Service Provider is an independent contractor and not an employee, partner, agent, or representative of the Artist.
- ♦ **Severability** — If any provision is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- ♦ **Waiver** — The failure of either party to enforce any right or provision shall not constitute a waiver of such right.
- ♦ **Assignment** — Neither party may assign this Agreement without the prior written consent of the other party.
- ♦ **Force Majeure** — Neither party shall be liable for delays or failures in performance resulting from causes beyond their reasonable control.

Acknowledgment & Signatures

By signing below, each party acknowledges that they have read, understood, and agree to be bound by the terms and conditions set forth in this Website Development Agreement.

Service Provider — Williams Digital

Client — Steve R. Skipper / Anointed Homes Art

Signature

Signature

Printed Name

Printed Name & Title

Date

Date